Sick and carer's leave and compassionate leave fact sheet

Overview

Sick and carer's leave (also known as personal/carer's leave) and compassionate leave are part of the National Employment Standards in the Fair Work Act. The National Employment Standards apply to all employees covered by the national workplace relations system.

An award, enterprise agreement or other registered agreement, contract of employment or workplace policy can't provide for conditions that are less than the National Employment Standards.

The National Employment Standards set minimum entitlements for permanent employees, including:

- paid sick and carer's leave
- unpaid carer's leave
- paid compassionate leave.

These types of leave are designed to help an employee deal with things like personal illness or injury, caring responsibilities, family emergencies, and the death or life-threatening illness or injury of close family members.

Casual employees are entitled to take leave such as unpaid carer's leave and unpaid compassionate leave.

Paid sick and carer's leave

What are the minimum entitlements to paid sick and carer's leave?

Sick leave can be used when an employee is ill or injured.

Carer's leave can be taken when an employee needs to care for an immediate family or household member who is sick, injured, or affected by an unexpected emergency. Carer's leave comes out of the employee's sick leave balance. Under the National Employment Standards, employees get:

- ten days each year for full-time employees
- pro rata 10 days each year for part-time employees.

An employee's entitlement to paid sick and carer's leave accumulates progressively during a year of service, based on their ordinary hours of work.

The entitlement to 10 days of sick and carer's leave can be calculated as 1/26th of an employee's ordinary hours of work in a year.

Unused sick and carer's leave is carried over to the next year.

Sick and carer's leave continues to accrue when an employee is on paid leave such as annual leave and sick and carer's leave. It does not accrue on unpaid leave unless it is community service leave, or it is provided for in an award or agreement.

When can paid sick and carer's leave be taken?

An employee can take paid sick and carer's leave:

- if they are unfit for work because of their own personal illness or injury (including stress and pregnancy related illnesses), or
- to care for or support a member of their immediate family or household, because of a personal illness, injury, or an unexpected emergency affecting the member. A member of the employee's immediate family means their:
  - spouse or former spouse
  - de facto partner or former de facto partner
  - child
  - parent
  - grandparent
  - grandchild
  - sibling, or
  - child, parent, grandparent, grandchild or sibling of the employee's spouse or de facto partner (or former spouse or de facto partner).

What payments are required when sick and carer's leave is taken?

When an employee takes paid sick and carer's leave, they must at least be paid at their base pay rate for the ordinary hours they would have worked during that period. An employee's 'base pay rate is the rate of pay they receive for their ordinary hours of work. It does not include:

- incentive-based payments
- bonuses
- loadings
- allowances
- overtime or penalty rates
- any other separately identifiable amounts.

Employees who have been stood down are not entitled to use paid sick and carer's leave for the days or hours they have been directed not to work.

Can paid sick and carer's leave be cashed out?

Most awards don't allow for sick and carer's leave to be cashed out. Employees covered by a registered agreement can cash out sick leave if the agreement allows it.

Only 2 awards allow employees to cash out sick and carer's leave (rules apply). These are:

- Timber Award
- Stevedoring Award.

Under an award or registered agreement, sick and carer's leave can only be cashed out if all of the following apply:

- there is a separate agreement in writing each time leave is cashed out
- the employee has a balance of at least 15 days of untaken paid sick and carer's leave after cashing out
- the employee is paid at least the full amount that would have been paid if they had taken the leave.

It is unlawful for an employer to force (or try to force) an employee to make (or not make) an agreement to cash out sick and carer's leave under a term included in an award or agreement.

An award or agreement-free employee can't cash out paid sick and carer's leave.

Unpaid carer's leave

What are the minimum entitlements to unpaid carer's leave?

Employees, including casual employees, are entitled to 2 days of unpaid carer's leave each time a member of the employee's immediate family or household requires care or support because of:

- personal illness
- injury
- an unexpected emergency.

Unpaid carer's leave can be taken as 1 continuous period, such as 2 days in a row, or in separate periods if the employee and employer agree. Employees can only use unpaid carer's if they don't have paid sick and carer's leave available for that occasion. This doesn't apply to casual employees, because they don't receive paid sick and carer's leave.

Compassionate leave

What are the minimum entitlements to compassionate leave?

All employees, including casual employees, are entitled to 2 days of compassionate leave to spend time with a member of their immediate family or household who contracts or develops a life-threatening illness or injury. Compassionate leave can also be taken by employees:

- after the death of an immediate family or household member
- if a child who would have been part of the employee's immediate family or household is stillborn, or
- if the employee, or the employee's current spouse or de facto partner, experiences a miscarriage.

An employee may take compassionate leave for each occasion as:

- a single continuous 2-day period, or
- two separate periods of one day each, or
- any separate periods to which the employee and their employer agree.

What payments are required when compassionate leave is taken?

If an employee (other than a casual employee) takes compassionate leave, the employer must pay the employee at the employee's base rate of pay for the ordinary hours they would have worked during the period of leave.

Casual employees are not entitled to any paid sick and carer's leave or compassionate leave under the National Employment Standards. However, casuals are entitled to unpaid carer's leave and compassionate leave.

The notice must be given to the employer as soon as possible, which may be after the leave has started, and must include the length (or expected length) of the leave.

Are there notice and evidence requirements?

For all periods of sick and carer's leave or compassionate leave, an employee must notify their employer that they are taking the leave.

An employer can ask for evidence that would support the reason for the leave. If an employee does not provide notice or, if required, does not provide evidence that would satisfy a reasonable person to substantiate the reasons for the leave, the employee may not be entitled to be paid for the leave.

There are no strict rules about the type of evidence an employee must provide. However, the evidence must be enough to convince a reasonable person that the employee was genuinely entitled to take sick or carer's leave.

An award or agreement may include terms for the type of evidence an employee needs to provide to be entitled to paid sick and carer's leave, unpaid carer's leave or compassionate leave. For example, an employer may request that the employee provides a medical certificate.

Contact us

Fair Work online: fairwork.gov.au

Fair Work Infoline: **13 13 94**

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You can contact us through the National Relay Service (NRS).

Select your preferred access option and give our phone number: **13 13 94**

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Last updated: July 2026
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